

State of Michigan
In the 14th Circuit Court of The County of Muskegon

Hon. Judge Jenny McNeill

Case # 2024-001507-DC

Andrew James Pigors

Plaintiff

Vs

Emily Ann Watson

Defendant

Attorney for Defendant;

Jennifer Barnes P55406

880 Jefferson St Muskegon MI 49440

231-720-0977

PROPOSED CUSTODY PARENTING TIME, AND CHILD SUPPORT

THIS MATTER having come before the Court upon the Plaintiff's Motion for Reconsideration of Judgement of Custody, Parenting Time, and Child Support, Case # 2024-001507-and the Court being fully advised in the premises, IT IS HEREBY ORDERED as follows:

1. Joint Legal and Physical Custody

- The Plaintiff, Andrew J. Pigors, and the Defendant, Emily Ann Watson, shall share joint legal and joint physical custody of their minor child, Lincoln David Watson, born on November 9, 2022, in accordance with MCL 722.26a. Both parents shall have equal decision-making authority regarding the health, education, and welfare of the child.

2. Parenting Time Schedule

- The parties shall alternate weeks with the minor child. Custody exchanges shall occur every Friday at 5:30 PM at the downtown Muskegon police station. The party receiving the child shall be responsible for picking up the child from this designated location.
- Holidays, school breaks, and other special occasions shall be equally divided between the parties according to the following schedule:
 - **Odd-numbered years:** The Plaintiff shall have the minor child for Thanksgiving, Christmas Eve, and Spring Break. The Defendant shall have the minor child for Christmas Day, New Year's Eve, and Easter.
 - **Even-numbered years:** The Defendant shall have the minor child for Thanksgiving, Christmas Eve, and Spring Break. The Plaintiff shall have the minor child for Christmas Day, New Year's Eve, and Easter.
- In the event of any disagreement regarding the holiday and special occasion schedule, the parties shall submit the matter to mediation as described in Section 8 of this order.

3. Child Support

- Child support shall be recalculated and adjusted in accordance with the Michigan Child Support Formula Manual (MCSFM), reflecting the 50/50 joint physical custody arrangement and considering the following costs:
 - **Daycare Costs:** The Plaintiff incurs daycare expenses of \$200 per week for the minor child.
 - **Health Insurance Costs:** The Plaintiff incurs health insurance costs of \$85 per month for the minor child.
- The recalculated child support obligation shall be apportioned based on each party's income and their proportionate share of the total child support obligation, in accordance with MCL 552.605 and MCR 3.211(D).

4. Health Insurance and Care Responsibilities

- Both the Plaintiff and the Defendant shall each maintain separate health insurance coverage for the minor child, Lincoln David Watson. Each party is individually responsible for ensuring the health, safety, and overall care of Lincoln, independent of one another. This ensures that both parents are equally accountable for providing the highest standard of care for their child.

5. Tax Exemption

- The parties shall alternate the right to claim the minor child as a dependent for federal and state income tax purposes. The Plaintiff shall claim the child in odd-numbered tax years, and the Defendant shall claim the child in even-numbered tax years.

6. School Enrollment

- When the minor child reaches school age, the parties shall mutually agree on the child's school enrollment. If the parties cannot reach an agreement, the matter shall be brought before the Court for determination. Both parties retain joint legal custody rights as established under MCL 722.26a, ensuring equal input in the child's education.

7. Access to Records

- Both parties shall have unrestricted access to all medical, dental, educational, and extracurricular records of the minor child. Each parent shall have the right to communicate directly with any providers or institutions responsible for the child's care, education, and activities, ensuring transparency and involvement in the child's well-being.

8. Dispute Resolution

- In the event of a dispute regarding custody, parenting time, or any other significant matter concerning the welfare of the minor child, the parties shall first attempt to resolve the

issue through mediation. Mediation shall be conducted in accordance with MCL 722.26c and MCR 3.216. If mediation does not resolve the dispute, either party may seek intervention from the Court.

9. Emergency Contact and Notification

- Each party shall immediately notify the other in the event of an emergency involving the minor child. Notification shall be made as soon as practicable, but in no event later than within two (2) hours of the incident. This ensures that both parents are fully informed and able to respond to any emergencies involving their child.

10. Relocation

Neither party shall relocate with the minor child outside of Muskegon County without obtaining prior written consent from the other party or an order of the Court, in compliance with MCL 722.31. The party seeking relocation must provide the other party with at least 30 days' notice of their intent to relocate, allowing sufficient time for objections or Court intervention if necessary.

11. International Travel Restrictions

- Neither party shall travel with the minor child to any country that does not participate in the Hague Convention on the Civil Aspects of International Child Abduction without prior written consent from the other party or an order of the Court. This provision is in compliance with MCL 722.27a(9) to prevent the risk of child abduction, ensuring that both parents have input on international travel decisions.

12. Modification of Order

- This order may be modified by mutual written agreement of the parties or by further order of the Court upon a showing of a substantial change in circumstances as required by MCL 722.27. Any modification must serve the best interests of the minor child, as determined under MCL 722.23, ensuring that the child's welfare remains the primary consideration.

• 13. Compliance with Michigan Law

- This custody order is entered in compliance with MCL 722.23, MCL 722.26a, MCL 722.27, MCL 722.27a(9), MCL 722.31, and MCR 3.211. The order shall remain in effect until further order of this Court.
 - **IT IS SO ORDERED.**

Judge Jenny McNeill